

Durably Sustainability Scan

Methodology summary — claim-risk screening

EmpCo / Directive (EU) 2024/825 ("Empowering Consumers for the Green Transition" Directive) • EU Forced Labour Regulation (Regulation (EU) 2024/3015)

This is a claims-risk screening tool, not a legal opinion, certification or assurance. It identifies sustainability wording that may be too broad, insufficiently evidenced, consumer-facing under EmpCo, or exposed to forced-labour regulation risk, or contradicted by relevant external public-source context.

1. Purpose and regulatory lenses

The scan applies exactly two regulatory lenses. Broader responsible-business frameworks (OECD Guidelines, UN Guiding Principles, ILO, GRI) are used only as supporting substantiation criteria for social claims, not as separate scored lenses.

Lens	How it is used in the scan
EmpCo / Directive (EU) 2024/825	Main green-claims lens, and also covers social characteristics: Art. 6(1)(b), as amended, brings "environmental or social characteristics" (wages, safety, human rights, equal treatment, gender equality, inclusion, diversity) within the same misleading-claims test. "EmpCo" stands for the Directive as regards Empowering Consumers for the green transition (Directive (EU) 2024/825). Member States transpose by 27 March 2026; rules apply from 27 September 2026. Prioritises generic environmental claims, climate-neutrality/offsetting claims, self-declared sustainability labels, broad absolute wording, future environmental-performance claims, comparative claims, and legal compliance presented as a sustainability benefit.
EU Forced Labour Regulation / Regulation (EU) 2024/3015	Main social-claim lens. A product-market-access and customs-enforcement regime, not a claims law: Art. 1(3) confirms it creates no new due-diligence obligation of its own. Flags wording that may imply products, suppliers or value chains are free from forced labour, or that traceability, due diligence or import/export controls provide assurance beyond what is evidenced. Core prohibition and enforcement provisions apply from 14 December 2027 (a few governance articles already apply from 13 December 2024).
UCPD environmental-claim definition	Supports the EmpCo lens: checks whether text, images, symbols, labels, brand names or presentation imply positive, zero, reduced, comparative or improved environmental impact.
OECD Guidelines / UNGPs / ILO / GRI	Supporting substantiation framework for social and forced-labour claims: identification, prevention, mitigation and accounting for adverse impacts, checked for specificity, balance and evidence.

2. What is retained as a claim signal

The scan does not operate as a simple keyword search. A word is retained only when the surrounding wording appears to make, imply or visually suggest an environmental or social performance claim. Neutral references such as *working with suppliers* or *backing local suppliers* are not retained unless they also imply assurance, compliance, certification, traceability, audits, due diligence or full supply-chain coverage. The website check follows relevant on-site links and, where linked directly from the company's own site, reads the text of PDF reports (e.g. an annual, CSR, ESG or sustainability report) in addition to web pages.

Retained signal type	Examples	Why it matters
Generic environmental claims	eco-friendly, green choice, sustainable product, conscious collection, planet friendly	Can fall under EmpCo restrictions when the claim is not clearly specified or substantiated on the same medium.
Climate and offsetting claims	carbon neutral, climate neutral, carbon compensated, net zero product, reduced climate impact	Product-level neutrality or reduced-impact claims based on offsetting are high-priority EmpCo risk indicators.
Labels, badges, icons	eco label, green badge, certified sustainable, leaf/planet/recycled icons used as trust marks	Self-declared labels and visual trust marks can mislead if not based on independent or public-authority schemes.
Supplier / sourcing assurance	responsible sourcing, ethical sourcing, audited suppliers, traceable supply chain, all suppliers comply	May imply supply-chain control, audit quality or compliance that must be evidenced with scope, coverage, methodology and remediation.

Retained signal type	Examples	Why it matters
Forced-labour assurance	forced-labour free, modern-slavery free, no forced labour, product traceability	Require robust traceability, risk assessment, mitigation, remediation and response procedures under Regulation (EU) 2024/3015.
Aspirational / future social-performance wording	working towards a foundation for living wages, wish to build a world where human rights are respected, our ambition is...	Vague, forward-looking commitments on wages, human rights or working conditions with no baseline, timeline or achieved result. Research (KU Leuven/HIVA, 2026) found this the dominant driver of social-washing risk in fashion-sector communication.

3. Claim source and detected wording

Field in report	Meaning
Source	The website page, uploaded document or related checked page where the retained wording was found.
Exact retained wording	A short passage around the claim, normally one sentence. The scan avoids mixing long paragraphs with isolated words.
Trigger phrase(s)	The specific wording that made the passage relevant, for example carbon neutral, eco-friendly, responsible sourcing or forced-labour free.
Why it matters	A short explanation of the EmpCo, Forced Labour Regulation or substantiation risk.
Suggested improvement	A practical rewrite principle: specify scope, evidence, method, time period, conditions and limitations.

4. Score calculation

The scan produces three scores: **Green score**, **Social score** and **Global score**. Scores are **risk scores, not performance scores**. Higher scores indicate higher claim-risk exposure or stronger need for legal, communication or evidence review.

Component	Weight (primary driver)	What increases the score
Claim wording severity	Primary driver (42%)	Direct EmpCo blacklist indicators (generic claims, offsetting, labels, absolute wording) and forced-labour or supplier assurance wording, plus multiple retained material claim signals.
Evidence-gap risk	Important driver (24%)	Limited visible substantiation, missing scope, missing methodology, missing dates, missing verification, missing supplier coverage or weak remediation evidence.
Negative external stakeholder context	Context driver (22%)	Relevant criticism, allegations, enforcement, litigation, NGO/union/regulator concerns or negative press linked to the same claim area.
Sector and channel sensitivity	Modifier (12%)	Consumer-facing communication, high-risk supply chains, fashion, food, retail, energy, chemicals, logistics or other sectors with elevated green/social claim exposure.

The calculation is **intentionally conservative**. A single isolated wording signal normally creates a limited or medium concern. High or very high scores require a stronger combination of severity, evidence gaps, regulatory relevance and/or retained negative external stakeholder signals.

Score band	Interpretation
0 – 44 Low	No material problematic claim retained or only limited wording risk visible.
45 – 74 Medium	Some claim signals, wording risk or evidence gaps for review.
75 – 89 High	Strong wording risk, evidence gaps and/or negative external stakeholder signals require priority review.
90 – 100 Very high	Reserved for multiple severe claim signals with strong external or regulatory context.

5. External stakeholder signals

Retained	Excluded
Media criticism, regulator action, court cases, investigations, NGO/union concerns, complaints, allegations, fines, sanctions, watchdog findings, negative stakeholder campaigns.	Company websites, sustainability reports, annual reports, ESG policies, supplier policies, codes of conduct, corporate press releases, awards, positive partnerships, brand campaigns and neutral business news.

6. Limits of the scan

The scan is a structured screening and prioritisation tool. It does not determine whether greenwashing or social washing legally occurred. Final assessment requires human review of the complete communication, applicable law, product context, evidence files, claim approval process, language versions and jurisdiction-specific enforcement practice.

If a site blocks automated access or returns unusually little text on most pages checked, the report carries an explicit data-reliability warning. A low score under those conditions may reflect limited access to the site's content rather than a genuine absence of risky claims, and should be treated with caution.

The tool is most useful before publication, campaign launch, website update, packaging change, sustainability report publication or supplier-claim reuse. It helps teams identify claim passages that should be specified, evidenced, reformulated or escalated.

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